

25PSCV02625 25PSCV02625

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 25PSCV02625 Hearing Date: October 5, 2026 Dept: 6

Plaintiff

JPMorgan Chase Bank, N.A.'s Request for Entry of Default Judgment

Defendant: Yuzhu Shi

TENTATIVE RULING

Plaintiff's request for entry of

default judgment is DENIED without prejudice. The Court hereby VACATES the default entered against Defendant Yuzhu Shi on June 30, 2026. If Plaintiff seeks to serve Defendant Yuzhu Shi based on the Court's March 25, 2026 Order for Publication, Plaintiff must do so through the Arcadia Weekly as specified in that order.

BACKGROUND

This

is a lending dispute. On July 17, 2025, plaintiff JPMorgan Chase Bank, N.A. (Plaintiff) filed this action. On September 10, 2025, Plaintiff filed the operative First Amended Complaint (FAC) against defendants Yuzhu Shi (Shi) and Superstar Auto House LLC (collectively, Defendants), alleging causes of action for possession of personal property and breach of contract. On December 2, 2025, Plaintiff dismissed Defendant Superstar Auto House LLC without prejudice.

On

June 30, 2026, default was entered against Shi.

On

July 30, 2026, Plaintiff requested entry of default judgment against Shi.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendant Shi in the total amount of \$89,178.37, including \$89,178.37 in damages. The Court finds Plaintiff's default judgment package supports the amount requested, but the Court notes a major procedural defect that renders void the default entered against Shi. The Court's order for publication indicates that the summons and complaint were to be published in the Arcadia Weekly, but the proof of publication indicates publication in the West Covina Press. (Order for Publication (3/25/26); Proof of Publication (5/5/26).) Service by publication requires strict compliance. (Cnty. of Riverside v. Superior Ct. (1997) 54 Cal.App.4th 443, 450.) Moreover, publication in the wrong newspaper specified in the court's order for publication renders any default judgment based thereon void on its face. The case of Calvert v. Al Binali (2018) 29 Cal.App.5th 954 is directly on point, in which the Court of Appeal found a default judgment "void on its face" where the order for publication specified one newspaper but the summons was actually published in a different newspaper. (Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 961.) Accordingly, the default entered was improper and the Court hereby VACATES the default entered against Defendant Yuzhu Shi on June 30, 2026. If Plaintiff seeks to serve Defendant Yuzhu Shi based on the Court's March 25, 2026 Order

for Publication, Plaintiff must do so through the Arcadia Weekly as specified in that order.

CONCLUSION

Plaintiff's request for entry of default judgment is DENIED without prejudice. The Court hereby VACATES the default entered against Defendant Yuzhu Shi on June 30, 2026. If Plaintiff seeks to serve Defendant Yuzhu Shi based on the Court's March 25, 2026 Order for Publication, Plaintiff must do so through the Arcadia Weekly as specified in that order.